

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No.26784 of 2023

Md. Billal
.... Accused-Petitioners
-Versus-
The State
.... Opposite Party
Mr. Mst. Rina Begum, Advocate
.... For the petitioners
Mr. Sujit Chatterjee, D.A.G.with
Ms. Farhana Afroze Runa, A.A.G.
Mr. Md. Abdul Aziz Masud, A.A.G.
Mr. Md. Shamim Khan, A.A.G.
... For the State

Heard and Judgment on 31.01.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Darus Salam Police Station Case No.44 dated 31.03.2022 corresponding to G.R. Case No.141 of 2022 under Sections 8/9/10/13 of the Santrash Birodhi Ain, 2009 (Amended in 2013) now pending in the Court of learned Chief Metropolitan Magistrate, Dhaka and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that on 31.03.2022 on the basis of a secret information police arrested accused petitioner Md. Billal while he was conspiring with other unknown co-accused persons standing on the road in front of Rokonuddin's Shop. It has been alleged that the petitioner is a member of militant organization Ansar Ul Islam.

The learned Advocate further submits that the accused petitioner is in custody in connection of this case for more than one year and ten months but the investigation of this case could not be concluded.

Mr. Sujit Chatterjee, learned Deputy Attorney General for the State raises objection against granting of bail to the petitioner at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out that from record that the petitioner was arrested by police from a public place on suspicion that he was a member of the militant organization Ansar Ul Islam. But there is no allegation of recovery of any incriminating material from the possession of the petitioner. He is in custody in connection of this case for more than one year and ten months. But the investigation of the case could not be concluded yet.

On consideration of above materials on record we find substance in this petition under Section 498 of the Code of Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute.

Let the accused petitioner Md. Billal, son of Md. Khalil be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Metropolitan Magistrate, Dhaka.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

MD. MASUDUR RAHMAN
BENCH OFFICER